

Executive Council Resolution No. (62) of 2016

**Concerning the
Provision of Care Related to Occupational Injuries and
Occupational Diseases to the Government of Dubai Employees¹**

We, Hamdan bin Mohammed bin Rashid Al Maktoum, Crown Prince of Dubai, Chairman of the Executive Council,

After perusal of:

Federal Law No. (7) of 1999 Issuing the Pensions and Social Security Law and its amendments;

Law No. (5) of 1995 Establishing the Department of Finance;

Law No. (3) of 2003 Establishing the Executive Council of the Emirate of Dubai;

Law No. (27) of 2006 Concerning Management of the Government of Dubai Human Resources and its amendments;

Law No. (13) of 2007 Establishing the Dubai Health Authority and its amendments;

Law No. (19) of 2007 Authorising the Chairman of the Executive Council to Issue the Government of Dubai Human Resources Management Legislation;

Law No. (31) of 2009 Establishing the Dubai Government Human Resources Department;

Law No. (1) of 2016 Concerning the Financial Regulations of the Government of Dubai; and

Executive Council Resolution No. (16) of 2013 Concerning the Health Insurance of the Government of Dubai Employees and its amendments,

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¹Every effort has been made to produce an accurate and complete English version of this legislation. However, for the purpose of its interpretation and application, reference must be made to the original Arabic text. In case of conflict, the Arabic text will prevail.

Do hereby issue this Resolution.

Definitions

Article (1)

The following words and expressions, wherever mentioned in this Resolution, will have the meaning indicated opposite each of them unless the context implies otherwise:

UAE:	The United Arab Emirates.
Emirate:	The Emirate of Dubai.
Law:	Law No. (27) of 2006 Concerning Management of the Government of Dubai Human Resources and its amendments.
GPSSA:	The General Pensions and Social Security Authority.
Executive Council:	The Executive Council of the Emirate of Dubai.
Department:	Any Government department, public agency or corporation, council, authority, or other Government Entity which is subject to the Law.
DGHR:	The Dubai Government Human Resources Department.
DHA:	The Dubai Health Authority.
Director General:	The director general of the DHA.
Employee:	A male or female person who occupies a budgeted post in a Department.
Health Insurance:	The health insurance for which Employees are eligible pursuant to the above-mentioned Executive Council Resolution No. (16) of 2013.
Medical Committee:	The medical committee formed pursuant to the provisions of the Law.
Federal Medical Committee:	The medical committee formed pursuant to the above-mentioned Federal Law No. (7) of 1999.
Accident:	A sudden incident that occurs during, or because of, work and which results in injury to an Employee.

Occupational Injury:	An injury suffered by an Employee as a result of an Accident he had at his workplace; due to performing his duties; while commuting from his residence to workplace and vice versa, provided that this commuting does not involve deviation from the normal route; or while travelling to perform his employment duties within or outside of the Emirate. Death resulting from occupational exhaustion or fatigue will also be deemed an Occupational Injury.
Occupational Disease:	Any of the diseases, suffered by an Employee, that are determined as occupational illnesses pursuant to a resolution of the Director General.
Injured Person:	An Employee who suffers from an Occupational Injury or an Occupational Disease, as stipulated in this Resolution.
Total Disability:	Any disability that may permanently cause a total loss of an Employee's ability to perform his employment duties and to engage in any other work.
Partial Disability:	Any disability that may permanently cause a partial loss of an Employee's ability to perform his employment duties.
Total Salary:	The monthly salary of an Employee, which comprises the Basic Salary, the general allowance, and the skill allowance.

Scope of Application

Article (2)

This Resolution will apply to Employees of the Departments governed by the Law or of any other Government Entity to which the application of this Resolution is extended pursuant to a resolution issued by the Chairman of the Executive Council.

Objectives of this Resolution

Article (3)

This Resolution aims to:

1. enhance the occupational safety procedures of Employees and protect them from Occupational Injuries and Occupational Diseases;
2. provide healthcare to Injured Persons;
3. provide a scheme for compensation for Occupational Injuries and Occupational Diseases;
4. preserve factors of production, in particular human resources;
5. create a safe working environment with the aim of improving and increasing the level of production;
and
6. reduce the costs of medical treatment and rehabilitation, and provide compensation for Occupational Injuries and Occupational Diseases.

Obligations of Departments

Article (4)

For the purposes of this Resolution, a Department must create a favourable working environment that ensures the safety and health of its Employees. In particular, the Department must:

1. establish occupational health and safety rules and procedures for its Employees, taking into consideration the nature of its activities; require the Employees to comply with these rules and procedures, and follow up their implementation; and satisfy workplace occupational safety requirements;
2. train Employees on the latest safe working methods, and seek to improve these methods;
3. monitor Employees in the course of performing their duties to minimise their exposure to any risks resulting from Occupational Injuries and Occupational Diseases;
4. ensure the efficiency of Employees' personal and general protective equipment, and ensure the regular maintenance of such equipment;

5. consider causes of Accidents and develop the necessary measures to prevent the recurrence of the same;
6. suspend work in circumstances where the safety of Employees is compromised;
7. raise Employees' awareness of occupational preventive measures, qualify and train them before they commence work, and inform them of work-related risks and methods of prevention; and
8. record cases of Occupational Injuries and Occupational Diseases, and periodically submit the relevant records to the DGHR.

Functions of the DGHR

Article (5)

For the purposes of this Resolution, the DGHR will have the duties and powers to:

1. supervise the implementation of this Resolution;
2. prepare and update the forms required for the implementation of the provisions of this Resolution, and provide Departments with copies of these forms;
3. review this Resolution in coordination with Departments and concerned Government Entities, propose any required amendments thereto, and submit these amendments to the Chairman of the Executive Council for approval; and
4. create a register of Injured Persons in order to record and analyse injuries and make appropriate decisions in this respect.

Preventive Actions and Measures

Article (6)

In addition to its obligations under this Resolution, a Department must take all preventive actions and measures required to minimise the exposure of its Employees to Occupational Injuries and Occupational Diseases. In particular, the Department must:

1. prepare a list of the posts whose occupants are exposed to Occupational Diseases;
2. conduct, in coordination with the DHA, periodic medical examinations for the Employees holding the posts mentioned in the list referred to in paragraph (1) of this Article, taking into consideration the duties performed by each Employee. Results of the medical examinations must be documented in the records maintained by the Department for this purpose; and
3. take the necessary action to verify whether an Employee suffers from an Occupational Disease, and provide medical treatment where required.

Obligations of Employees

Article (7)

For the purposes of this Resolution, an Employee must, in the course of performing his duties, seek to avoid Occupational Injuries or Occupational Diseases. In particular, the Employee must:

1. use appropriate working methods when performing his employment duties, and exercise caution and care in using any equipment, tools, or machines while on duty;
2. monitor work elements and equipment and inform his immediate supervisors of any relevant defects;
3. comply with occupational health and safety instructions adopted by his Department, and use personal preventive equipment;
4. avoid any physical influences that may cause harm to him while performing his duties;
5. maintain the equipment, tools, and machines he uses while performing his duties in a good working condition; and
6. comply with the occupational health and safety rules and procedures adopted by his Department, and undergo the medical examinations prescribed by the Department.

Occupational Injuries Resulting from Exhaustion

Article (8)

An injury that results from exhaustion or fatigue will be deemed an Occupational Injury subject to the following:

1. the exhaustion or fatigue must have resulted from an additional effort beyond the normal effort required from an Employee to perform the work assigned to him;
2. the Employee must have been officially assigned to perform the work that resulted in the additional effort; and
3. a direct causal relationship must be established between the occupational exhaustion or fatigue and the injury suffered by the Employee.

Occupational Diseases

Article (9)

A disease will be deemed an Occupational Disease subject to the following:

1. a causal relationship must be established between the disease and the post held by the Employee;
2. the disease must have been determined as an Occupational Disease by a resolution of the Director General;
3. the period of the Employee's exposure to the causative factors of the disease must be scientifically proven to be sufficient to cause him to suffer that disease; and
4. the symptoms of the disease must have appeared during the service period of the Employee or within two (2) years from the date of end of his service with the Department.

Provision of Healthcare

Article (10)

- a. Necessary healthcare will be provided to an Injured Person under a Health Insurance programme and he will not incur any healthcare costs regardless of the category of Health Insurance to which he is entitled. Healthcare that must be provided by the Department to the Injured Person will include, but will not be limited to, the following:
 1. providing first aid to the Injured Person and transporting him to the nearest medical centre or hospital;
 2. where the Injured Person's condition stabilises while receiving medical treatment at a private healthcare facility, transferring him to any government healthcare facility at which the required treatment is available;
 3. providing healthcare to the Injured Person outside of the UAE if the relevant healthcare service is not available in the UAE, based on a report issued by the Medical Committee;
 4. providing healthcare to the Injured Person until his condition stabilises or until he dies. This will include:
 - a. providing necessary healthcare related to any Occupational Injury or Occupational Disease;
 - b. providing medical rehabilitation services, artificial limbs, and auxiliary medical equipment;
 - c. providing necessary medication; and
 - d. paying the cost of transportation from the healthcare facility providing the treatment to his residence;
 5. following up the condition of the Injured Person throughout the period of medical treatment in direct coordination with the healthcare facility providing the treatment. This includes requesting medical reports on his health condition and on his commitment to treatment; and
 6. coordinating with the Medical Committee on all matters related to the Injured Person, and providing it with all reports issued by the healthcare facility providing the treatment.

- b. Necessary healthcare will be provided to the Injured Person if he sustains an injury or disease while on an official or training assignment outside of the UAE.
- c. Where the Injured Person suffers complications as a result of the same injury within six (6) months from the date on which his condition stabilises, the Medical Committee will have the authority to decide whether or not he is entitled to receive further healthcare pursuant to this Resolution.

Reporting Occupational Injuries

Article (11)

- a. An Injured Person must report to his Department any Occupational Injury he sustains, within no later than (1) one week from the date of that injury. Where he fails to do so without a valid reason, the Department will not have any liability towards him.
- b. A Department, or its representative, must immediately report any injury suffered by an Employee to the DGHR and to the police station having jurisdiction over the area where the injury occurred, in the following cases:
 - 1. where there is suspicion of a criminal activity;
 - 2. in case of Accidents involving fire, explosions, or collapses;
 - 3. in case of Accidents that may lead to the death of the Employee; and
 - 4. in any other cases the Department deems necessary to be reported to the competent police station.
- c. Upon completion of the relevant investigation, the Department may obtain a copy of the investigation reports.

Commitment to Medical Treatment by Injured Persons

Article (12)

An Injured Person must undergo the prescribed medical treatment during the provision of healthcare services. Where the Injured Person refuses to receive, or neglects, treatment, he will bear full responsibility for the consequences. In addition, the healthcare services provided to him will be ceased by a resolution by the Medical Committee based on reports issued by the competent entity that manages the Health Insurance programme.

Financial Costs

Article (13)

The DOF will provide the necessary funds to cover healthcare expenses resulting from Occupational Injuries and Occupational Diseases, and to compensate any Injured Person and his heirs in the event of his disability or death, as the case may be, in accordance with financial rules and procedures adopted by the DOF in this regard.

Rights of Injured Persons

Article (14)

- a. During the medical treatment period, an Injured Person will be entitled to Total Salary for up to one (1) year or until his recovery, disability, or death is established, whichever comes first. Where the treatment period exceeds one (1) year, the following procedures will apply:
 1. a UAE-national Employee who is insured by the GPSSA will be examined by the Federal Medical Committee to consider extending the period of his treatment and entitlement to Total Salary, or recommending the termination of his service for medical unfitness;
 2. a UAE-national Employee who is not insured by the GPSSA will be examined by the Medical Committee to consider extending the period of his treatment and entitlement to Total Salary for up to one (1) year, or recommending the termination of his service for medical unfitness; or

3. a non UAE-national Employee will be examined by the Medical Committee to consider extending the period of his treatment for up to one (1) year, in which case he will receive seventy-five percent (75%) of his Total Salary; or recommending the termination of his service for medical unfitness.
- b. Where the competent medical committee recommends termination of the services of an Injured Person for medical unfitness, his service will be terminated subject to a six-month notice. However, his service may be terminated immediately, provided that he receives a six-month Total Salary in lieu of that notice period.

Compensation Eligibility Cases

Article (15)

An Injured Person will be entitled to compensation for Partial Disability, Total Disability, or death resulting from an Occupational Injury or Occupational Disease, provided that the cause of the disability or death is established by a medical report issued by the Federal Medical Committee in case of UAE-national Employees insured by the GPSSA, or by a medical report issued by the Medical Committee in case of other Employees.

Compensation for Death or Total Disability

Resulting from Occupational Injuries

Article (16)

In the event of death or Total Disability as a result of an Occupational Injury or Occupational Disease, the amount of compensation will be equal to the Basic Salary for three (3) years, but may neither be less than two hundred thousand Dirhams (AED 200,000.00) nor more than one million Dirhams (AED 1,000,000.00).

Entitlement of Heirs to Death Compensation

Article (17)

A Department will deposit the amount of death compensation in the Dubai Courts' treasury within one (1) month from the date of announcement of the investigation results confirming that the death has been

caused by an Occupational Injury or Occupational Disease. The competent court must distribute the death compensation amount to heirs in accordance with the relevant rules and principles adopted by that court.

Compensation for Partial Disability

Article (18)

- a. The percentage of Partial Disability will be determined based on the percentage of Total Disability and in accordance with the Disability Percentage Table approved by a relevant resolution of the Director General. The compensation amount payable in case of Partial Disability will be calculated by multiplying the Partial Disability percentage by the amount of compensation referred to in Article (16) of this Resolution.
- b. Where the disability suffered by an Injured Person is not covered by the cases and percentages stated in the table referred to in paragraph (a) of this Article, the compensation amount will be estimated based on the most similar case, taking into account the ability of the Injured Person to perform his employment duties. In that case, the percentage of disability must be determined by the competent medical committee.
- c. Where it is proven that an Injured Person suffers from a Total Disability or Partial Disability, the Department must pay the compensation prescribed by the competent medical committee to the Injured Person within a period not exceeding one (1) month from the date of issuing the committee's decision.
- d. Where an Occupational Injury or Occupational Disease results in multiple damage, the Injured Person will be entitled to compensation for each item of damage, provided that the total amount payable in this case does not exceed the amount of death compensation.

Procedures for Occupational Disease Compensation

Article (19)

- a. Subject to the provisions of Article (9) of this Resolution, for a medical condition to be deemed an Occupational Disease, the Injured Person must submit a relevant application to the Department for

which he is or was working. The Department will refer this application to the competent medical committee, which will issue the relevant decision after considering the medical condition of the Injured Person and examining him in coordination with the Department.

- b. Where an Occupational Disease is established, the relevant compensation will be determined by the Medical Committee or the Federal Medical Committee, as the case may be.

Deprivation from Compensation

Article (20)

- a. An Injured Person will not be entitled to compensation for any Total Disability or Partial Disability suffered as a result of an Occupational Injury or an Occupational Disease, and his heirs will not be entitled to claim compensation in case of his death, where it is proven that the injury or disease has resulted from his wilful misconduct. This includes the following:
 - 1. if the Employee deliberately inflicts an injury upon himself for a reason not related to his employment or moral duties.
 - 2. if the Employee has been under the influence of intoxicants, narcotics, or any other psychotropic substances at the time of the relevant Accident;
 - 3. if the Employee deliberately violates the occupational health and safety instructions adopted by his Department; and
 - 4. if the Employee refuses, without a valid reason, to undergo medical examination or to abide by the medical treatment recommended by the health facility providing him with that treatment.
- b. A Department may deprive an Injured Person from healthcare services and recover any paid medical treatment expenses if it is proven that the Occupational Injury or Occupational Disease has resulted from a wilful misconduct of the Employee.

Limitation Period for Claiming Compensation

Article (21)

The right of an Injured or his heirs to claim the compensation prescribed under this Resolution will be forfeited after the lapse of five (5) years from the date of entitlement to that compensation.

General Provisions

Article (22)

- a. Where an Injured Person becomes entitled to compensation for a disability that has resulted from an Occupational Injury or Occupational Disease, and he dies due to that injury or disease within two (2) years from the date of payment of the disability compensation, his heirs will be entitled to death compensation. In that case, any amount previously paid to the Injured Person as disability compensation will be deducted from the amount of death compensation.
- b. Where compensation is paid to an Injured Person who is insured by the GPSSA, or to his heirs, but the amount of that compensation is less than the amount to which he is entitled under this Resolution, the Injured or his heirs will be entitled to compensation equal to the difference between the amount paid by the GPSSA and the amount to which he is entitled under this Resolution.

Publication and Commencement

Article (23)

This Resolution will be published in the Official Gazette and will come into force on the day on which it is published.

Hamdan bin Mohammed bin Rashid Al Maktoum

Crown Prince of Dubai

Chairman of the Executive Council

Issued in Dubai on 5 September 2016

Corresponding to 3 Thu al-Hijjah 1437 A.H.